

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #10	CCRB Case #: 201900629	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/19/2019 7:20 PM	Location of Incident: Bristol Street, between Pitkin Avenue and Sutter Avenue	Precinct: 73	18 Mo. SOL 7/19/2020	EO SOL 3/5/2021	
Date/Time CV Reported Sat, 01/19/2019 7:25 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 01/19/2019 7:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Louis Aponte	07454	957850	073 PCT
2. LT Thomas Turner	00000	926232	073 PCT
3. DTS Joseph Mcevoy	7393	944790	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Thomas Turner	Abuse: Lieutenant Thomas Turner stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
B.DTS Joseph Mcevoy	Abuse: Detective Joseph Mcevoy stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
C.POM Louis Aponte	Abuse: Police Officer Louis Aponte stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
D.DTS Joseph Mcevoy	Abuse: Detective Joseph Mcevoy frisked § 87(2)(b).	
E.DTS Joseph Mcevoy	Abuse: Detective Joseph Mcevoy searched § 87(2)(b).	
F.POM Louis Aponte	Abuse: Police Officer Louis Aponte frisked § 87(2)(b).	
G.LT Thomas Turner	Abuse: Lieutenant Thomas Turner threatened to arrest § 87(2)(b).	
H.DTS Joseph Mcevoy	Abuse: Detective Joseph Mcevoy searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
I.LT Thomas Turner	Abuse: Lieutenant Thomas Turner searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On January 19, 2019, § 87(2)(b) filed this complaint on behalf of himself, his brother, § 87(2)(b), his § 87(2)(b)-year-old son, § 87(2)(b), and his friend, § 87(2)(b) with the CCRB by phone.

On January 19, 2019, at approximately 7:20 p.m., on Bristol Street between Pitkin Avenue and Sutter Avenue in Brooklyn, Lieutenant Thomas Turner, Det. Joseph McEvoy, and PO Louis Aponte, all of the 73rd Precinct, stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants for a broken tail light (**Allegation A, B, and C: Abuse of Authority – Vehicle Stop**, § 87(2)(g)). Det. McEvoy asked § 87(2)(b) to step out of the car, frisked § 87(2)(b) (**Allegation D: Abuse of Authority – Frisk**, § 87(2)(g)), and asked § 87(2)(b) to remove all the items in his pockets (**Allegation E: Abuse of Authority – Search (of person)**, § 87(2)(g)). PO Aponte asked § 87(2)(b) who was sitting in the front passenger seat, to step out of the car, and he frisked § 87(2)(b) (**Allegation F: Abuse of Authority – Frisk**, § 87(2)(g)). § 87(2)(b) tried to get out of the car, and Lieutenant Turner held the door closed and told him, “You want to do this at the stationhouse? We can put you in handcuffs.” (**Allegation G: Abuse of Authority – Threat of Arrest**, § 87(2)(g)).

After Det. McEvoy and PO Aponte frisked § 87(2)(b) and § 87(2)(b), § 87(2)(b) got out of the car, Det. McEvoy searched the car (**Allegation H: Abuse of Authority – Vehicle Search**, § 87(2)(g)) and recovered two marijuana cigarettes (**BR 01**). Lieutenant Turner also searched the car and recovered an open container of Corona Beer (**Allegation I: Abuse of authority – Vehicle Search**, § 87(2)(g)). PO Aponte issued a summons to § 87(2)(b), § 87(2)(b), and a summons to § 87(2)(b), § 87(2)(b).

§ 87(2)(g), § 87(4-b)
§ 87(2)(g)
§ 87(2)(g)

Body-worn camera footage from Det. McEvoy (**BR 06**) and Lieutenant Turner (**BR 07**) was obtained by the investigation, § 87(2)(g).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Thomas Turner stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Detective Joseph Mcevoy stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Police Officer Louis Aponte stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

It was undisputed that on January 19, 2019, at approximately 7:20 p.m., § 87(2)(b) was stopped for driving with a broken taillight.

§ 87(2)(b) (**BR 08 and BR 09**) consistently acknowledged that he was driving with a broken taillight when he was stopped, and Lieutenant Turner (**BR 10**), Det. Mcevoy (**BR 11**), and PO Aponte (**BR 12**) all stated that that was the only reason they stopped § 87(2)(b). Det. Mcevoy and PO Aponte both stated that Det. Mcevoy used his discretion not to

issue § 87(2)(b) a summons for driving with a broken taillight. Lieutenant Turner did not recall why § 87(2)(b) did not receive a summons for the broken taillight.

In Det. Mcevoy's body worn camera footage (**BR 06**), at 00:35 seconds, Det. McEvoy tells § 87(2)(b) that one of the bulbs in his taillight is out. § 87(2)(b) tells Det. Mcevoy that he was aware of the issue and needs to get it fixed.

§ 87(2)(b), § 87(2)(g)

New York Vehicle and Traffic Law § 375 (2)(a)(3) (**BR 13**) states that every motor vehicle except a motorcycle, driven upon a public highway during the period from one-half hour after sunset to one-half hour before sunrise shall display, if manufactured after January first, nineteen hundred fifty-two, at least two lighted lamps on the rear, one on each side, which lamps shall display a red light visible from the rear for a distance of at least one thousand feet.

In People v. Robinson, 97 N.Y. 2d341 (2001) (**BR 14**), the court held that the decision to stop an automobile is reasonable where the officers have probable cause to believe that a traffic violation has occurred, regardless of their intention.

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: Detective Joseph Mcevoy frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Joseph Mcevoy searched § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Louis Aponte frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Detective Joseph Mcevoy searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (I) Abuse of Authority: Lieutenant Thomas Turner searched the vehicle in which § 87(2)(b), § 87(2)(b), #, § 87(2)(b), and § 87(2)(b) were occupants.

It was undisputed that there was marijuana in § 87(2)(b) car, that Det. Mcevoy frisked § 87(2)(b) that PO Aponte frisked § 87(2)(b) and that Det. Mcevoy and Lieutenant Turner searched § 87(2)(b) vehicle.

§ 87(2)(b) (**BR 08** and **BR 09**) consistently stated that after Det. Mcevoy asked § 87(2)(b) who was sitting in the back and yelling loudly for Det. Mcevoy to issue a summons for the moving violation and let them go, if he had been drinking. § 87(2)(b) told Det. Mcevoy that no one was drinking in the car, that there were no open containers in the car and asked if he § 87(2)(b) smelled if he had been drinking. Det. Mcevoy asked § 87(2)(b) to step out of the car because he wanted to separate him from § 87(2)(b) § 87(2)(b). § 87(2)(b) walked with Det. Mcevoy to the back of the car, and Det. Mcevoy asked § 87(2)(b) to take his belongings, a wallet, keys, and a cell phone, out of his pants pockets, which § 87(2)(b) did. Det. Mcevoy then patted down the exterior of § 87(2)(b) clothing from the chest area then down his legs, telling § 87(2)(b) that he was checking for weapons.

While § 87(2)(b) was with Det. Mcevoy at the back of the car, Lieutenant Turner and PO Aponte asked § 87(2)(b), § 87(2)(b), and § 87(2)(b) to

step out of the car. No one patted down § 87(2)(b), but § 87(2)(b) was not sure if anyone patted down § 87(2)(b) or § 87(2)(b). Once everyone was out of the car, PO Aponte stood with § 87(2)(b) by the trunk of § 87(2)(b) car while Det. Mcevoy searched the interior of § 87(2)(b) car.

Although PO Aponte had instructed § 87(2)(b) to face away from his car, § 87(2)(b) turned around and saw Det. Mcevoy enter the front passenger side of the car and look in the side pocket on the door and in the glove compartment. When Det. Mcevoy finished searching the car, he showed what § 87(2)(b) the burnt ends of two marijuana cigarettes. § 87(2)(b) told him that he did not know who the marijuana belonged to and had not been aware that it had been in the car.

§ 87(2)(b) (BR 15) stated in his intake call to the CCRB that Det. Mcevoy, Lieutenant Turner, and PO Aponte asked § 87(2)(b) to step out of the car, which he did. All the other passengers also got out to see what was happening. The officers all then searched the car. § 87(2)(b) was uncooperative with subsequent contact attempts (BR 16).

§ 87(2)(b) declined to provide a phone statement or participate in the investigation (BR 17).

The investigation was unable to establish contact with an alternate guardian for § 87(2)(b) § 87(2)(b) (BR 18) and, therefore, did not obtain a statement from him.

Det. Mcevoy (BR 11) stated that as soon as he approached § 87(2)(b) he smelled alcohol coming from the car. As he spoke with § 87(2)(b) at the front passenger door, Det. Mcevoy smelled the odor of burnt marijuana also coming from inside the car. Det. Mcevoy decided to ask § 87(2)(b) to step out of the car because he wanted to speak with him away from § 87(2)(b) who was yelling loudly, and because he had smelled marijuana and alcohol coming from inside the car.

Det. Mcevoy led § 87(2)(b) to the trunk area, where he patted down his waistband because he had smelled marijuana in the car and because of § 87(2)(b) aggressive demeanor. Det. Mcevoy then asked either PO Aponte or Lieutenant Turner to ask § 87(2)(b) to get out of the car, also because of the odor of marijuana and alcohol. Det. Mcevoy did not see if either PO Aponte or Lieutenant Turner patted down § 87(2)(b). Finally, Det. Mcevoy asked Lieutenant Turner to take § 87(2)(b) and § 87(2)(b) out of the car. Once everyone was outside of the car, Det. Mcevoy decided to search the car because of the odor of marijuana, and he recovered the burnt end of a marijuana cigarette in the center console. An open bottle of alcohol was also recovered from the front passenger seat, but Det. Mcevoy did not recall who found the bottle or what was in it.

§ 87(2)(g)
PO Aponte stood at the trunk of the car while Det. Mcevoy initially spoke with § 87(2)(b). From the trunk of the car, PO Aponte smelled alcohol coming from inside of the car. Det. Mcevoy asked § 87(2)(b) to get out of the car and led him to the trunk area where PO Aponte was standing, but PO Aponte could not recall if Det. Mcevoy patted down § 87(2)(b). PO Aponte then approached the front passenger side door, where § 87(2)(b) was sitting. § 87(2)(b) window was open, and PO Aponte smelled a strong odor of marijuana coming from inside the car. PO Aponte looked into the front passenger area from outside of the car and saw a black plastic bag containing a half-full, capped, 40-ounce glass bottle of Corona beer.

PO Aponte then decided to ask § 87(2)(b) to step out of the car because of the odors of marijuana and alcohol, the visible opened bottle of beer, and § 87(2)(b) general demeanor. Once § 87(2)(b) as outside of the car, PO Aponte patted down § 87(2)(b) waistband, legs, and jacket pocket primarily because he had smelled marijuana in the car, but also because of the odor of alcohol, the open bottle of beer, and § 87(2)(b) aggressive demeanor.

PO Aponte saw Det. Mcevoy search § 87(2)(b) car, and, later that night, Det. Mcevoy told PO Aponte that the reason he had searched the car was because of the odor of marijuana and that he had recovered a small quantity of marijuana from somewhere inside the car.

§ 87(2)(g)
Lieutenant Turner approached the passenger side of the car and saw the tip of an uncapped, half-full, glass bottle he believed to be a 40-ounce beer sticking out of a bag between § 87(2)(b) legs. § 87(2)(b) put the cap back on the bottle and put the bottle on the floor when he heard one of the other officers say something about smelling alcohol in the car. Lieutenant Turner and PO Aponte allowed § 87(2)(b) to get out of the car, at which point Lieutenant Turner reached into the front passenger area of the car and confirmed that the bottle was an opened bottle of beer.

Lieutenant Turner did not see Det. Mcevoy or PO Aponte frisk § 87(2)(b) or § 87(2)(b) and he did not smell the odor of marijuana emanating from the car or on any of the occupants. Neither Det. Mcevoy nor PO Aponte indicated to Lieutenant Turner that they smelled marijuana coming from the car, although Lieutenant Turner thought that Det. Mcevoy searched the car because he had smelled marijuana.

In Det. Mcevoy's body-worn camera footage (**BR 06**), beginning at 1:08 minutes, Det. McEvoy says that he smells alcohol in the car and then asks § 87(2)(b) to step out of the car. The footage does not visually capture the frisk, which occurs beginning at approximately 1:22 minutes. Beginning at 6:29 minutes, Det. Mcevoy searches the car, and, at 6:50 minutes, he finds marijuana in the center console. At 7:50 minutes, Det. Mcevoy opens a black plastic bag on the front passenger side floor and sees a partially-consumed, capped container of Corona beer. Beginning at 8:22 minutes, § 87(2)(b) explains that the marijuana is old, belonged to a friend, and he had forgotten it was in the car.

In Lieutenant Turner's body-worn camera footage (**BR 07**), PO Aponte frisks § 87(2)(b) beginning at 5:47 minutes. § 87(2)(b) walks to the back of the car, and, at 6:30 minutes, Lieutenant Turner leans into the front passenger side of the car and the sound of a plastic bag moving is audible.

A property voucher (**BR 01**), prepared by PO Aponte, states that two marijuana cigarettes, which field tested positive, were recovered from § 87(2)(b) car.

PO Aponte wrote a summons § 87(2)(b) for § 87(2)(b) (**BR 02**), and a summons § 87(2)(b) for § 87(2)(b) (**BR 03**).

It was undisputed that there was marijuana in § 87(2)(b) car. § 87(2)(g)

§ 87(2)(b) Det. Mcevoy and PO Aponte both stated that the primary reason that they frisked § 87(2)(b) and § 87(2)(b) was because of the odor of marijuana. Det. Mcevoy also stated that the reason he searched the car was because of the odor of marijuana.

It was also undisputed that there was an opened container of Corona beer in the front passenger side of the car. Lieutenant Turner stated that the reason he reached into the car was to confirm that the bottle he had seen § 87(2)(b) holding was an alcoholic beverage. Lieutenant Turner stated that he did not smell any marijuana and that neither Det. Mcevoy nor PO Aponte told him that they had smelled marijuana.

According to People v. Chestnut, 43 A.D.2d 260 (1974) (**BR 19**), the smell of marijuana smoke, with nothing more, can be sufficient to provide officers with probable cause to search an automobile and its occupants.

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)

Allegation (G) Abuse of Authority: Lieutenant Thomas Turner threatened to arrest

§ 87(2)(b)

It was undisputed that Lieutenant Turner told § 87(2)(b) “You want to do this at the stationhouse? We can put you in handcuffs.”

As noted above, § 87(2)(b) did not provide a detailed statement regarding this incident (**BR 16**).

Lieutenant Turner (**BR 10**) stated that while § 87(2)(b) was calm during the incident, § 87(2)(b) immediately upon the officers’ approach, started yelling loudly for the officers to “just write the tickets.” While Det. Mcevoy spoke with § 87(2)(b) at the back of the car, § 87(2)(b) continued to yell loudly, and tried to step out of the vehicle. Lieutenant Turner physically held the door closed to prevent § 87(2)(b) from stepping out because he was concerned that, based on § 87(2)(b) aggressive demeanor, the incident would, “escalate in the streets.” Lieutenant Turner explained that he told § 87(2)(b) “You want to do this at the stationhouse? We can put you in handcuffs,” because he was informing him that the officers could detain the passengers, that they could go to the stationhouse, and that they could finish issuing the summonses there. Lieutenant Turner denied ever telling § 87(2)(b) that he was going to be arrested.

Det. Mcevoy (**BR 11**) and PO Aponte (**BR 12**) both denied ever hearing Lieutenant Turner tell § 87(2)(b) that he could take § 87(2)(b) to the stationhouse or place him in handcuffs. However, they both consistently stated that § 87(2)(b) was yelling loudly and repeatedly tried to get out of the car. Det. Mcevoy also stated that one of the reasons that he asked § 87(2)(b) to step out of the car was because § 87(2)(b) was yelling loudly and interfering with their conversation regarding the vehicle stop. § 87(2)(b) (**BR 08** and **BR 09**) also stated that § 87(2)(b) was yelling loudly and interfering with his conversation with Det. Mcevoy while he was in the car.

In Lieutenant Turner's body-worn camera footage (**BR 10**), beginning at 1:55 minutes, § 87(2)(b) opens the back passenger side door, and Lieutenant Turner closes it and tells him that he has to remain inside the car while the officers deal with § 87(2)(b). Lieutenant Turner tells § 87(2)(b) that the officers are in charge of the situation, and § 87(2)(b) repeatedly says that they are not. At 2:26 minutes, Lieutenant Turner tells § 87(2)(b) "You want to do this at the stationhouse? We can put you in handcuffs."

§ 87(2)(b), § 87(2)(g)

New York Penal Law § 195.05 (**BR 20**) states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force, or interference.

People v. Tarver 188 A.D.2d 938 (1992) (**BR 31**) states that physical force or physical interference can consist of inappropriate and disruptive conduct at the scene of the performance of an official function. The court found that an individual who made a threatening gesture by cocking his arms to strike an officer involved in arresting another individual was guilty of obstruction of governmental administration. The threatening approach necessitated another officer to divert his assistance in the other arrest and intervene to protect his partner from apparent attack.

§ 87(2)(b) yelled loudly for the officers to let them go and told Lieutenant Turner that he did not have authority in the situation. § 87(2)(b) then repeatedly tried to get out of the car by pushing his door open, despite instructions from Lieutenant Turner to remain in the car. § 87(2)(b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint and has been named as a victim in two allegations (**BR 22**).
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 23**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 29**).
- § 87(2)(b) has been a party to three CCRB complaints and has been named as a victim in five allegations (**BR 24**).
 - § 87(2)(b)
- Lieutenant Turner has been a member of service for 19 years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated.
§ 87(2)(g)
- PO Aponte has been a member of service for four years and has been a subject in four CCRB complaints and 10 allegations, of which three were substantiated.
 - 201902785 involved substantiated allegations of force and a retaliatory arrest. The Board recommended Command Discipline A, and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- Det. Mcevoy has been a member of service for 12 years and has been a subject in 10 CCRB complaints and 24 allegations, of which one was substantiated.
 - 201206499 involved a substantiated allegation of a vehicle search. The Board recommended Charges, and the NYPD imposed no penalty.

Mediation, Civil and Criminal Histories

- On February 13, 2019, this case was sent to mediation and on April 26, 2019, the case was returned to investigation as the complaint was no longer eligible for mediation.
- As of September 5, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 25**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date